MUTUAL NON-DISCLOSURE AGREEMENT

Section 1. Parties and Effective Date

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into as of the date of the last signature below (the "Effective Date") by and between Pendant Inc., a corporation ("Pendant"), and Oscorp Corp., a corporation ("Oscorp"), collectively referred to as the "Parties."

Section 2. Purpose

The Parties wish to explore a potential business opportunity of mutual interest and benefit. In connection with this exploration, each Party may disclose to the other Party certain confidential and proprietary information. This Agreement sets forth the terms and conditions under which such information shall be protected.

Section 3. Confidential Information

For purposes of this Agreement, "Confidential Information" means any and all non-public information disclosed by one Party (the "Disclosing Party") to the other Party (the "Receiving Party") in any form or medium, including but not limited to technical data, trade secrets, business plans, financial information, customer lists, product specifications, source code, manufacturing processes, and strategic information. Confidential Information shall be deemed to include information disclosed in written, oral, electronic, or visual form.

Section 4. Exclusions from Confidential Information

Confidential Information does not include information that: (a) was publicly available at the time of disclosure or thereafter becomes publicly available through no breach of this Agreement by the Receiving Party; (b) was rightfully in the possession of the Receiving Party prior to disclosure, as evidenced by written documentation; (c) is independently developed by the Receiving Party without use of or reference to the Confidential Information; or (d) is rightfully received by the Receiving Party from a third party without breach of any confidentiality obligation.

Section 5. Obligations of the Receiving Party

The Receiving Party agrees to: (a) maintain the Confidential Information in strict confidence using the same degree of care it uses to protect its own confidential information, but in no case less than reasonable care; (b) limit access to Confidential Information to employees and contractors who have a legitimate business need to know and who are bound by written confidentiality obligations no less protective than those contained herein; (c) not use the Confidential Information for any purpose other than evaluating the potential business opportunity; and (d) not disclose the Confidential Information to any third party without the prior written consent of the Disclosing Party.

Section 6. Permitted Disclosures

Notwithstanding Section 5, the Receiving Party may disclose Confidential Information as required by law, court order, or regulatory authority, provided that the Receiving Party provides prompt written notice to the Disclosing Party to permit the Disclosing Party to seek protective measures or injunctive relief.

Section 7. Return or Destruction of Information

Upon written request by the Disclosing Party, or upon termination of this Agreement, the Receiving Party shall, at the Disclosing Party's election, either return or certify the destruction of all Confidential Information and all copies thereof within thirty days, except that the Receiving Party may retain one archival copy for legal compliance purposes.

Section 8. Consideration

In consideration for the mutual covenants and agreements contained herein, each Party shall pay to the other Party the sum of Sixty-Five Thousand Dollars ($65,000.00) within thirty days of the Effective Date. This payment constitutes consideration for disclosure of Confidential Information and entry into this mutual agreement.

Section 9. Term and Termination

This Agreement shall commence on the Effective Date and shall continue for a period of three (3) years, unless terminated earlier. Either Party may terminate this Agreement upon ninety (90) days' written notice to the other Party. Obligations regarding Confidential Information shall survive termination for the duration of the original three-year term.

Section 10. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Illinois, without regard to conflict of law principles.

Section 11. Entire Agreement

This Agreement constitutes the entire agreement between the Parties concerning the subject matter and supersedes all prior negotiations, representations, and agreements.